

January 25, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 10084
(SIXTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This Special Permit authorizes the continued use of non-DOT specification cargo tanks manufactured from glass fiber reinforced plastics (GFRP) for transportation in commerce of certain Class 8 and 9 materials. This Special Permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this Special Permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180. (**NOTE:** Reference to 49 CFR sections in this Special Permit, relating to the construction of the cargo tanks, are to regulations in effect on September 30, 1990).
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.241 and 173.242 in that non-DOT specification packaging is not authorized, except as specified herein.
5. BASIS: This Special Permit is based on the application of Old Bridge Chemicals, Inc., dated November 18, 2005 submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Corrosive liquid, acidic inorganic, n.o.s. (Cupric chloride and Hydrochloric acid)	8	UN3264	II
Corrosive liquid, acidic, inorganic, n.o.s. (Zinc Sulfate & Phosphoric acid)	8	UN3264	III
Environmentally hazardous substance, liquid, n.o.s. (Zinc sulfate)	9	UN3082	III
Hydrochloric acid, solution	8	UN1789	II
Zinc Chloride, solution	8	UN1840	III

7. SAFETY CONTROL MEASURES:

a. Prescribed packagings are non-DOT specification glass fiber reinforced plastics (GFRP) cargo tanks having a design pressure of 35 psig. Tanks must have an inside diameter between 48 to 60 inches and a water capacity between 3,600 to 5,700 gallons. Tanks must be designed and constructed in accordance with Composite Engineering drawings CE-101-88A and CE-102-88 through CE-105-88 dated November 3, 1988, calculations, and technical specifications on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA). The GFRP cargo tanks must be in full compliance with DOT Specification MC-312 (§§ 178.340 and 178.343) cargo tanks, except as follow:

(1) §§ 178.340-3, 178.343-2(a) - Type of material does not apply. Instead, tank shell, heads and fittings must be constructed of GFRP in accordance with the data on file with the OHMSPA.

(2) §178.340-5 - Not applicable.

(3) §178.340-7 - Reinforcement provided by the GFRP-FOAM-GFRP sandwich construction may be substituted for the circumferential reinforcement prescribed in

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§ 178.340-7 provided the resultant reinforcement produces a structural integrity at least equal to that prescribed in § 178.340-4(b).

(4) § 178.340-10(b)(1) - "DOT-SP 10084" must be stamped on the line which reads "Specification identification" on the metal certification plate.

(5) § 178.340-10(c) - The manufacturer's certificate retained by the motor carrier must be appropriately modified to reflect compliance with the terms of this Special Permit.

b. TESTING - Each cargo tank must be reinspected and hydrostatically retested annually in accordance with 49 CFR Part 180 as prescribed for DOT Specification MC-312 cargo tanks, as appropriate, at one and one-half times the design pressure. The visual inspection must look for any cracks, delaminations, gouges, debonding at saddles, liner deterioration, and broken items as a minimum.

c. OPERATIONAL CONTROLS

(1) New construction is not authorized.

(2) The compatibility of commodities and the GFRP cargo tank must be based on ASTM C 581 "Standard Test Method for Chemical Resistance of Thermosetting Resins Used in Glass Fiber Reinforced Structures". Test reports must be maintained by the owner or manufacturer for as long as the cargo tank remains in active operation.

(3) Any repair to the cargo tank not affecting its structural integrity must be made in accordance with the manufacturer's recommendations on file with the OHMSPA and the owners of these cargo tanks. Any repair to the cargo tank affecting its structural integrity must be made in accordance with the Maintenance/Quality Retention Requirements for Composite Cargo Tanks Per DOT Specification MC 312" submitted by the petitioner's application of November 3, 1988. After repair, the tank must be hydrostatically retested at one and one-half times the design pressure. A record of the repairs made and testing performed must be maintained by the owners of the cargo tank for as long as the cargo tank remains in service and a report describing the repairs, must be filed with the OHMSPA by the cargo

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tank owner. All repairs must be made by a facility registered with the OHMSPA as a repair facility. (See §§ 107.501 through 107.504).

(4) The cargo tank owner(s) must follow the "Quality Assurance Requirements for Production of Composite Cargo Tanks Per DOT Specification MC 307/312" submitted by the petitioner's application of July 17, 1991 and "Qualification Requirements for Composite Cargo Tanks Per DOT Specification MC 312" dated February 27, 1989. Hydrostatic test pressure must be maintained for a minimum of five minutes.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this Special Permit who receives a package covered by this Special Permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this Special Permit and the HMR.

b. A current copy of this Special Permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING. Each cargo tank must be plainly marked on the left side near the front, in letters at least two inches high on a contrasting background, "DOT-SP 10084".

d. Packages permanently marked 'DOT-E 10084', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life the package or until the special permit is no longer valid. Packages marked after October 1, 2007 must be marked 'SP 10084'.

e. Shipping papers displaying 'DOT-E 10084' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

a. A current copy of this Special Permit must be carried aboard each motor vehicle used to transport materials covered by this Special Permit.

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- b. Drivers must have been instructed as to necessary safeguards and proper procedures in the event of unusual delay, fire, or accident.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

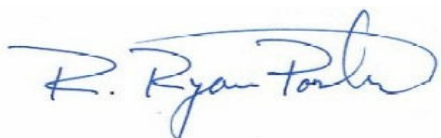
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Porter", is written over a faint, circular official stamp.

for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: AM/kah